Green Paper 17 — Commons as Habitat

The commons is what we keep making possible together

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It is the meadow between homes.
The river no one owns.
The fire shared at night.
The air we all forget we're borrowing.

A commons is sometimes imagined as a thing that belongs to everyone. But a meadow, a river, a body of knowledge or a shared institution does not become a commons merely because no single person owns it.

A commons exists where people remain in relationship with something they depend upon and accept responsibility for the conditions of its continuation. It includes what is shared, those who share it, and the rules through which use, care, conflict and renewal are organised.

The commons is therefore not an empty space before governance. It is an achieved and continually revised form of governance.

We do not "use" the commons.
We tend it.

From resource to habitat

The language of resources asks what may be taken, allocated or optimised. It can be useful, but it does not describe the whole relation. A forest may provide timber and still be home, watershed, memory, livelihood, carbon cycle and more-than-human community. A database may contain information and still be part of a habitat of trust, work and consequence.

To call a commons habitat is to place use inside the conditions that make continued life possible. The harvest remains connected to regeneration. Access remains connected to responsibility. A decision remains connected to those who will live with its effects.

This does not mean that commons must be untouched. People fish, graze animals, maintain irrigation channels, write software, cultivate gardens and draw water. The question is whether use remains answerable to renewal — and whether those positioned to notice and live with change can affect the rules.

A habitat is not simply preserved. It is inhabited.

Ownership is not the whole relationship

The commons is not the opposite of property, boundaries or rules. Legal ownership may organise responsibility, protect continuity and establish rights that matter. Different forms of ownership can support or undermine commoning. Public land can be enclosed in practice. Privately held land can carry binding responsibilities to a wider community. Collective tenure can become exclusionary. Open access can become a pathway to depletion.

A boundary on a map may establish title. It does not create belonging.

Land may be owned in law without becoming an object in life. Long before a title is registered, a place has already been shaped by water, soil, species, histories, labour and relations of dependence. These do not disappear when a name enters the ledger.

Ownership freezes relationship when title is treated as total authority: *This is mine; therefore I stand outside reciprocity.* The correction is not to pretend that legal ownership does not exist. It is to place ownership back inside the living arrangement and ask what responsibilities follow from being able to affect a place.

No title exhausts the relationship.

Who owns the land?

There is no single global ledger capable of answering who owns the Earth. What can be seen is a profound separation between title, control, consequence and belonging.

FAO estimates that farms larger than 1,000 hectares constitute about 0.1 per cent of farms while operating nearly half of global agricultural land. At the same time, peoples and communities whose lives have remained bound to particular territories may still lack legal recognition of relationships carried across generations.

These patterns do not determine who cares well for land. But neither are they politically neutral. Ownership and market power shape who may decide, whose knowledge counts, who receives the benefit and who is left to live with the consequences.

Across forests, soils, watersheds, mines, plantations and supply chains, the aggregate result is no longer defensible. Living systems have been simplified, exhausted and displaced on a scale that cannot be explained away as a collection of unfortunate exceptions. A practice may be lawful, profitable and culturally ordinary while still being destructive.

This is not an accusation against every person holding land. Nor does responsibility fall equally. Many people are compelled to overuse the ground beneath them because the economic conditions of survival leave too little room for patience, restoration or restraint. Farmers and landholders may themselves be caught inside debt, contracts, machinery, input systems, commodity prices and inherited expectations that narrow what appears possible.

A different relationship with land must also become materially possible for those whose livelihoods depend upon it.

A title may protect a place from one form of capture while enabling another. Restoration, conservation and carbon projects can help living systems recover. Good intention, however, does not dissolve questions of tenure, consent, authority and consequence.

No profit cancels the consequence.

Ownership can become a passage

To recognise these patterns is not to close the door on those who presently hold land. A person may inherit or acquire a place within one understanding of ownership and gradually discover another. What first appeared as an asset may become a watershed, a habitat, a livelihood for others, a history carried in soil or a responsibility extending beyond one lifetime.

That recognition can become practical. Land can be placed in trusts or foundations, transferred to community ownership, held through cooperatives, opened to shared governance, protected by lasting ecological commitments or passed between generations under different terms. Agricultural land can be released from continuous production, restored in part, cultivated through more diverse systems or brought into relationships that strengthen food sovereignty and local livelihood.

Such passages do not arise only through the generosity of owners. They are also made by communities organising, restoring customary tenure, changing law and building institutions capable of holding land beyond an individual life.

None of these forms is pure by itself. A foundation can centralise power. A cooperative can exclude. Rewilding can displace livelihoods. Community ownership can reproduce old hierarchies. The name of the arrangement does not guarantee the quality of the relationship. What matters is whether authority becomes answerable to place, consequence and those whose lives are entangled with what happens there.

The transition may begin before ownership changes. An owner can listen differently, disclose constraints, invite knowledge, share decisions and allow stewardship to acquire real standing. Over time, that movement may alter the legal form itself. What was possessed can become entrusted. What was controlled can become held in common.

This is not a demand for a single model of return. It is an invitation to notice that ownership need not be the final form of the relationship.

The bridge is not to deny title, but to refuse its treatment as total. Ownership can serve stewardship when it remains answerable to prior relations, affected communities, future generations and the living field itself.

Stewardship grows through presence

Stewardship cannot simply be declared on arrival. It grows through repeated attention: seeing a place in more than one season, noticing what changes, learning who carries knowledge, remaining when maintenance is unglamorous and living with the consequences of earlier decisions.

Expertise may enter from outside and still be valuable. But expertise does not erase the standing created by lived relation. The person who has watched a channel through drought and rain may know something that is absent from its formal map. The people who return to repair a shared garden carry an authority different from ownership and credentials.

This authority is neither automatic nor absolute. Long presence can also harden into gatekeeping, inherited privilege or resistance to necessary change. Presence creates standing, not sovereignty.

Stewardship grows through repeated presence. Its authority is earned in relationship, tested by consequence and kept open to correction.

Care must be allowed to deepen into authority without hardening into possession.

Rules make relation durable

Elinor Ostrom and the Bloomington School gave precise language to this: enduring commons are shaped through rules-in-use. These are not merely the regulations written in a charter. They are the actual understandings, permissions, obligations, sanctions and repair practices through which people coordinate around a shared field.

Rules-in-use answer practical questions:

- Who may use what, when and how?
- Who contributes labour, knowledge or money?
- How is change observed?
- Who can alter the rules?
- How are disagreements handled?
- What happens when someone takes more than the arrangement can carry?

The answers need not be informal. A commons may require contracts, public law, budgets, monitoring and professional administration. But these forms remain servants of the living arrangement. Written rules and rules-in-use must be able to meet each other.

The commons is not where rules disappear. It is where rules become answerable to relationship.

The field must be able to answer

Consider a shared irrigation channel. Its formal map may show gates, parcels and permitted volumes. Its living map also includes silt, broken tools, upstream decisions, rainfall, informal agreements, maintenance days, absences and the knowledge of the person who notices that the flow has changed.

If that knowledge cannot reach the place where rules are made, the channel may remain administratively legible while becoming ecologically and socially unworkable.

Commons governance therefore depends upon return paths. The field must be able to answer through observation, testimony, measurement, conflict, absence and changing participation. Those signals need somewhere to travel, someone authorised to receive them and a process through which they can alter practice.

Technology can help preserve memory, make patterns visible and carry observations across distance and time. But a dashboard does not constitute a commons, and data does not by itself confer authority. The people represented must remain able to contest what is recorded and correct what is missing. Signals from the living systems concerned must remain capable of changing what follows.

This does not require every commons to remain small. A watershed, a migratory route, a climate system or a digital commons may cross many jurisdictions and distances. Governance can be nested and polycentric, allowing different centres of action to respond at different scales. But scale becomes detached when those who feel consequences can no longer move the rules.

Governance may travel across scales. Accountability must remain connected to consequence.

Scale is legitimate when the field can still answer back.

The task is not perfect information. It is a relationship capable of learning.

Kinship is renewed

Commoning is sometimes described as if a harmonious community already exists. Harmony, however, cannot be presumed. People arrive with different histories, capacities, interests and degrees of dependence upon what is shared. Some participate every day. Some enter occasionally. Some leave. Some carry knowledge without holding formal roles.

Kinship in this context is not sameness and not compulsory intimacy. It is the gradual formation of reliable relation across difference.

Kinship is not static.
It is ceremonial agreement —
renewed in fire, in story, in silence, in storm.

The ceremony may be modest: opening a gate, cleaning a channel, reviewing accounts, welcoming a new participant, naming a breach, sharing a meal or returning for the meeting after a difficult disagreement. Repetition lets people learn whether words and actions remain connected.

Belonging does not require constant participation. A living commons needs different distances from its centre and legitimate ways to enter, pause and leave.

Nor should public visibility always be demanded. A person may need anonymity, confidentiality or a protected channel when exposure creates risk. But privacy for people is different from consequence-free anonymity for power. Extraction, authority and decision-making cannot remain unknown to the field they affect.

You may be unknown to the crowd. You cannot remain absent from the relationship.

What matters is not the performance of community. It is whether the relationships required to sustain the shared field can be renewed.

Kinship is not who you claim.
It is who you keep showing up for.

Institutions remember

Presence matters, but no commons should depend upon the permanent availability of one exceptional steward. People tire, move, become ill, change roles and die. If knowledge, trust and authority cannot travel, the commons becomes fragile precisely where it appears most devoted.

Institutions allow care to outlive a particular moment. Minutes, ledgers, maintenance schedules, budgets, access protocols, succession practices and archives may look less alive than the meadow or river. Yet they can hold memory across interruption.

The question is not whether a system is formal or informal. It is whether its form helps the relationship remember:

- what has been promised
- what the field has taught
- where harm or depletion appeared
- who carries which responsibility
- how authority can move
- when an arrangement must be revisited

Institutional memory is not the freezing of the past. It is the capacity to return without beginning from zero.

Grace in systems

Systems do not have to be cold.
They can be kind.

Kindness in a system is not the absence of standards. It appears in whether a person can understand what is expected, ask for help, correct an error, challenge a decision and re-enter after failure. It appears in whether accountability protects the shared field without reducing a person to their worst act.

Grace can be built into notice periods, handovers, appeals, pauses, accessible language, repair paths and the separation of honest mistakes from repeated capture. It can also require a firm limit. A system without consequences may leave the cost of generosity with those who keep repairing what others damage.

Grace is therefore not softness added after the architecture is complete. It is part of whether the architecture can remain inhabited.

Feedback as mutual unfolding.
Accountability as care.
Design as a form of listening.

Even in the backend. Even in the database. Even in the governance circle at two in the morning, the question remains the same: Does this form help the shared field continue — and can life still answer back?

The commons remembers

A commons is neither a thing without an owner nor a community without conflict. It is a living arrangement through which shared conditions are tended over time.

It needs boundaries without enclosure, rules without rigidity, technology without displacement of authority, and stewardship without permanent possession. It needs ways to receive knowledge from the field and ways to carry that knowledge beyond the people presently in the room.

We do not "protect" the commons.
We remember we are part of it.

Protection remains necessary. What changes is the imagined position of the protector. We cease to stand outside the shared field as managers of an object. We enter a relationship that precedes us, changes through us and may continue after us.

The commons endures when care becomes memory, memory becomes practice, and practice remains open to life.

Selected references

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Poetic source: Gaia Bloom Constitution (2025).

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